

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

December 9, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook (arrived at 6:08 p.m.), Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Esquibel moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 25, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a bar & grill liquor license application filed with the City Clerk’s Office for Rock Ranch LLC d/b/a Nellie’s, 4020 Airport Parkway, Cheyenne, WY. Public comment was made by: Kathy Brent. Comment was made by the following member of the governing body: Dr. Aldrich. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 0.13 acres of land located north of Cheyenne Street and west of and adjacent to Ridge Road. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, tracts of land situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4593)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of LI Light Industrial and BP Business Park for tracts of land being annexed to the City situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Daunte Rushton, Cheyenne LEADS (#4594)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural and HI Heavy Industrial to AG Agricultural for land located south of Campstool Rd and north of Interstate 80. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4595)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located north of Bevans Street, west of College Drive and south of Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4596)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR - Medium-Density Residential, HR - High Density Residential, and CB - Community Business for land annexed to the City of Cheyenne generally located north of Bevans Street, west of College Drive, and south of Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4597)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northeast Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4598)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR - Agricultural Residential, LR Low-Density Residential, MR - Medium-Density Residential, and MUR Mixed-Use Residential for land annexed to the City of Cheyenne generally located east of Ridge Road, west of Whitney Road and along Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4599)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public and MUR Mixed-Use Residential to MUB Mixed-Use Business for land located northeast of the intersection of Morrie Avenue and East Lincolnway. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment

was made by: Brandon Swain and Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County. (#4600)

ORDINANCE – 3rd READING – Amending Section 8.60.080, Non-Compliant Vehicles as a Nuisance, of the Municipal Code of the City of Cheyenne, Wyoming, declaring oversized vehicles as a nuisance, providing for their regulation, clarifying provisions and making conforming amendments. Reporting for Committee of the Whole, Mr. Esquibel moved to approve on third and final reading, seconded by Mr. Johnson. Mr. Esquibel moved to approve by substitute dated December 4, 2024, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Dr. Aldrich moved to amend by substitute dated December 5, 2024, seconded by Mr. Johnson. Motion to amend by substitute failed due to a tie vote. Voting “yes” – Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. Segrave. Voting “no” – Mayor Collins, Mr. Cook, Dr. Rinne, Mr. Roybal and Mr. White. Mr. White moved to amend page 4, item #8 by changing the width requirement from 7 ft. to 8.5 ft., seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. Dr. Rinne moved to amend page 8, Section 10.52.020(B) by adding the restriction that no person shall park where any part of the vehicle extends onto or over any sidewalk or extends onto or over the travel lane of a street, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook, Mr. Esquibel, Mr. Johnson and Mr. Segrave voting “no”. Dr. Rinne moved to amend Section 10.52.020(B) by including to the prior amendment – “for a period of not more than 8 hours and only during daylight hours”, seconded by Mr. Esquibel. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Laybourn voting “no”. Main motion as amended by substitute, as amended (3 amendments) carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Laybourn voting “no”. Public comment was made by the following: Donald Jones, Lee Filer, Gary Everett, Joseph McCord, Katelyn Wilson, Steve Manning, Ed Melko, Alisa Krishtal, Tom Fuller, Daryl Frank, Gregory Barrow, James Wenzinger, Terese Johnston, Alan Sheldon, Wayne Gizinski, Georgia Broyles, John Puls, Cathy Deister, David Cook, Vicki Nemecek, Nathan Stoner and Jeff Kling. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White. (#4601)

Mayor Collins reconvened the meeting at 8:23 p.m. after a brief recess.

ORDINANCE – 3rd READING – Creating Chapter 13.32, Stormwater Runoff Management System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming, establishing the Stormwater Runoff Management System, imposing a user fee for necessary funding and repealing obsolete provisions. Mr. Esquibel moved to approve on third and final reading, seconded by Mr. Laybourn. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by Tim Bradshaw, Director of Aviation, Cheyenne Regional Airport, Kevin Paintner, Cheyenne Airport Board, Seth Lloyd, Ken Richardson, Cathy Deister, Jon Puls and Alan Sheldon. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#4602)

ORDINANCE – 3rd READING – Specifying the monthly Stormwater Runoff Management System User Fee in accordance with Section 13.32.050 of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Esquibel moved to approve on third and final reading, seconded by Mr. Laybourn. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by: Cathy Deister. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson and Mr. Segrave. (#4603)

ORDINANCE – 2nd READING – Amending subsections 6.6.3.b.3, 6.7.5.c, and 6.9.4.e of the Unified Development Code (UDC), changing building façade design requirements for multifamily residential development. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”.

ORDINANCE – 2nd READING – Amending Chapter 2.16.010 of the Municipal Code of the City of Cheyenne, Wyoming, requiring the City Treasurer to annually evaluate and report to the Governing Body any outstanding debt owed the City by any City Board, Council or Commission Member. Reporting for Finance Committee, Dr. Aldrich moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Alan Sheldon. Comment was made by the following member of the governing body: Mr. Johnson.

ORDINANCE – 2nd READING – Amending Chapter 8.68, Camping on Public Property, of the Municipal Code of the City of Cheyenne, Wyoming, expanding the general prohibition on camping to all public property of the City, creating a permitting process, making conforming amendments and repealing obsolete provisions. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Cathy Deister and Mark Moody. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Dr. Rinne.

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, land located north of Cheyenne Street and west of and adjacent to Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land annexed to the City of Cheyenne located north of Cheyenne Street and west of and adjacent to Ridge Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land being annexed to the City at Lot 1, Block 1, North Range Substation, Laramie County, Wyoming (located south of Happy Jack Road, west of Bruns Way) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land located northeast of the intersection of West Allison Road and Walterscheid Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Planned Unit Development (PUD) (Ordinance #4274) to NR-3 Neighborhood Residential – High Density for land located north of West College Drive, south of West Allison Road, and west of Walterscheid Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending Section 10.12.020 of the Municipal Code of the City of Cheyenne, Wyoming, clarifying that failure to maintain liability coverage is a jailable offense – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing a one-time payment from Fiscal Year 2024 budget savings given to full-time and permanent part-time employees of the City of Cheyenne (excluding elected officials and employees of the Cheyenne Board of Public Utilities). Dr. Aldrich moved to adopt, seconded by Mr. White. Dr. Aldrich moved to amend by substitute dated November 21, 2024, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Dr. Aldrich. (#6442)

RESOLUTION – Encouraging City staff to solicit public comment on changes to the administration of sanitation pickup locations and further directing City staff to coordinate with Univerus, Inc. to schedule a meeting before the Governing Body regarding the Sanitation Rerouting and Optimization Project. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to adopt, seconded by Mr. Laybourn. Motion failed. Voting “no” – all members of the governing body with the exception of Mr. Laybourn voting “yes”. Public comment was made by: Mark Moody and Carey Anson. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White.

[CA] RESOLUTION – Amending the City of Cheyenne 2024 Program Year Annual Action Plan, prepared by the Cheyenne Housing and Community Development Division – referred to Finance Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the 5th Street Towns, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of West 5th Street and Snyder Avenue) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Edgar Subdivision, City of Cheyenne, Laramie County, Wyoming (located north of Sullivan St and adjacent to Panorama Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – To effectuate appropriate property record corrections, authorizing the Mayor to execute all necessary documents related to amending and extinguishing certain easement agreements affecting a portion of the Belvoir Ranch and the properties directly north and south of that portion of the Belvoir Ranch – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Memorandum of Understanding between the City of Cheyenne and the Laramie County Board of Commissioners to allow the County to continue to review and inspect active development applications and permits in areas annexed by the City. Mr. Roybal advised the item was heard under other items for the agenda at the December 3, 2024 Public Services Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. Roybal moved to approve, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated December 4, 2024, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” - all members of the governing body. Public comment was made by: Lee Filer. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Segrave. (#8097)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County Wyoming to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to the City) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center, Volunteers of America, Healthworks, Community Action of Laramie County, Wyoming Department of Corrections, Laramie County Sheriff’s Office, District Attorney, Drug Court and Treatment Court Programs, Laramie County and the Office of the State Public Defender for the Laramie County Law Enforcement Assisted Diversion (LEAD) Program Policy Coordinating Group – referred to Finance Committee.

[CA] Contract Modification #4 to Contract #7437 between the City of Cheyenne and Brandon Swain for a Purchase and Sale Agreement for the sale of surplus land located northeast of the intersection of Morrie Avenue and Lincolnway, to add a requirement that the buyer of the land provide required parking for development, regardless of zone or overlay. Motion (per Consent Agenda) carried. (#7437)

[CA] Consideration of Bid #S-7-25 for an Agreement between the City of Cheyenne and Fencetrak Inc. d/b/a Full Tilt Services for the Belvoir Ranch Trailhead and Access Roads Project (Belvoir Ranch Recreation Fund and Wyoming Outdoor Recreation Grant). Motion (per Consent Agenda) carried (in an amount of \$672,507.50). (#8098)

[CA] Consideration to purchase between the City of Cheyenne and Spieth Gymnastics, for the purchase of gymnastics equipment for the new Cheyenne Gymnastics Facility (Recreation Fund & Lotto Proceeds) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Public comment was made by the following under Other Business: Jason Sanchez.

Comments were made by the following members of the governing body under other business: Dr. Aldrich and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:13 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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